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IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) No. OF 2010

IN THE MATTER OF:

Smt. Lalitha V. Gopal Petitioner

Versus

The Union of India and others Respondents

AFFIDAVIT VERIFYING THE SPECIAL LEAVE PETITION

I, Smt. Lalitha V. Gopal, aged 47 years, w/o. Sri. K. Venugopal, resident of No.650, 13th Cross, Gokulam 3rd Stage, Mysore – 570 002, today at Bangalore, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the present Special Leave Petition and I am fully conversant with the facts of the case.

2. The contents of the Synopsis and the List of Dates (pages) Special Leave Petition paras 1 to 8 and the I.As respectively have been read by me carefully and I have understood the same, I state that the facts which have been stated therein are true to my knowledge; and no part of it is false; and nothing material has been concealed therefrom.

3. The annexures filed with the Special Leave Petition are all true copies of their respective originals.

Verified at Bangalore on 19th February 2011.

SYNOPSIS AND LIST OF DATES

(1)

(2)

LIST OF DATES:

23.1.1998	A copy is filed herewith as **ANNEXURE-P-1**
9.7.2010	Aggrieved by the judgment dated 3.7.2009 as also the order dated 23.7.2010 this Special Leave Petition is filed with an application separately filed praying for delay in challenging the judgment dated 3.7.2009.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a) of the Supreme Court Rules)

CIVIL APPRELLATE JURISDICTION

SPECIAL LEAVE PETITION

(Under Article 136 of the Constitution of India)

WITH PRAYER FOR INTERIM RELIEF

Special Leave Petition (Civil) No._____/2010

POSITIONS OF PARTIES

	In the High Court	**In this Court**
In the matter of :-		
	Respondent	Petitioner
And:-		
	Petitioner	Respondent

To,

THE HON'BLE CHIEF JUSTICE OF INDIA
AND
HIS OTHER, COMPANION JUDGES OF THE SUPREME COURT OF INDIA, NEW DELHI

THE HUMBLE PETITION OF THE PETITIONER ABOVE NAMED

The Special Leave Petition of the Petitioner:

MOST RESPECTFULLY SHOWETH:

1. That the petitioner above named respectfully submits this Special Leave Petition under Article 136 of the Constitution of India for grant of Special Leave to Appeal against (i) the Judgment and Decree dated 3.7.2009 passed by a Division Bench of the Hon'ble

High Court of Karnataka, Bangalore in M.F.A. No.4333/2007 (AA) on its file and (ii) the subsequent order dated 23.7.2010 passed by the same Bench of the same court on Miscellaneous Civil Petition No.17288/2009 on its file, latter petition being one filed by the petitioner herein for recalling the "judgment dated 3.7.2009 and for hearing the Miscellaneous First Appeal No.4333/2007 (AA) on its maintainability and merits.

1a.

2. **QUESTIONS OF LAW**:

That this petition raises the following substantial and important questions of law, for grant of Special Leave to Appeal.

a.

b. Whether

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioners state that no other petition seeking leave to appeal has been filed by either of them against the judgment questioned in this Special Leave Petition, previously.

4. **DECLARATION IN TERMS OF RULE 6** :-

The Annexures P1 to_____ produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. **GROUNDS** :-

Leave to appeal is against the judgment and decree dated 3.7.2009 also the later order dated 23.7.2010 is sought by the petitioner, on the following grounds.

I.

II. The

6. **GROUNDS FOR INTERIM RELIEF** :-

(i) In order

(ii) The petitioner

7. **MAIN PRAYER** :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the impugned judgment and decree dated 3.7.2009 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore in M.F.A. No. 4333/2007 (AA) on its file and also from the order dated 23.7.2010 passed by the same Bench of the same Court in Miscellaneous Civil Petition No.17288/2009 on its file;

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the

award of the costs of the proceedings althrough, and in the interest of justice and equity.

8. PRAYER FOR INTERIM RELIEF :-

It is, therefore, most respectfully prayed that your Lordships may graciously be pleased to:

(a) ***grant*** an exparte order of stay of the operation, implementation and execution of the decree dated 3.7.2009 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore in Miscellaneous First Appeal No.4333/2007(AA) and in confirmation of the said ad-interim order after service of notice on the respondent;

and

(b) ***pass*** such other order or orders which this Hon'ble Court may deem fit and proper in the interest of justice.

New Delhi
Date:

Advocate for the Petitioner

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL No. OF 2010

IN THE MATTER OF:

Smt. Susheela S. Iyengar Appellant

Versus

M/s. Rajagruha Estates Respondent

APPLICATION UNDER SECTION 5 OF THE INDIAN LIMITATION ACT, 1963 FOR CONDONATION OF DELAY

The petitioner above named respectfully submits as follows:

In the above Special Leave petition the judgment and decree dated 3.7.2009 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore

New Delhi Advocate for the Petitioner
Date: